

McDANIEL v. VULCAN MATERIALS COMPANY (CALMAT)

23CV47087

DEFENDANT'S DEMURRER and MOTION TO STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT

Plaintiff filed a complaint against Calmat (erroneously named as Vulcan Materials Company) claiming negligence, intentional infliction of emotional distress and exemplary damages. Defendant filed a Demurrer and Motion to Strike on April 16, 2024. Plaintiff filed her opposition to the Demurrer and Motion to Strike along with a First Amended Complaint on April 29, 2024.

When a plaintiff amends their complaint after a defendant has filed a demurrer, the amended complaint becomes the operative pleading and is the complaint analyzed in light of the demurrer. (*Barton v. Khan* (2007) 157 Cal. App. 4th 1216.)

A demurrer presents an issue of law regarding the sufficiency of the allegations outlined in the complaint. The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein), or from matters outside the pleading which are judicially noticeable. The complaint is read as a whole. Material facts properly pleaded are assumed true, but contentions, deductions or conclusions of fact/law are not. In general, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (California Code of Civil Procedure §§ 430.10 *et seq.*; *Blank v. Kirwan* (1985) 39 Cal.3rd 311, 318; *Gray v. Dignity Health* (2021) 70 Cal.App.5th 225, 236 n.10.)

In ruling on a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) "The mere allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Ct.* (1984) 157 Cal.App.3rd 159, 166, fn. omitted.)

In analyzing the First Amended Complaint, and comparing it to the initial complaint, the amended complaint does not state facts concerning the incident in sufficient detail to hold defendant liable for Intentional Infliction of Emotional Distress or Exemplary Damages. There are no allegations of ultimate facts that the demurring party is liable for intentional acts or exemplary damages.

Where facts pleaded show no more than simple negligence and allegations added in the amended complaint plead no additional facts, but merely characterize defendant's post-incident conduct are not sufficient to state a cause of action for punitive damages. (See Civil Code, § 3294)

Defendant's Demurrer to Second Cause of Action for Intentional Infliction of Emotional Distress is **SUSTAINED**, with leave to amend.

Defendant's Motion to Strike the Exemplary Damages attachment and Punitive Damage Prayer (14(a)(2)) are **GRANTED**, with leave to amend.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant is to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

ARIZA v. LAKESIDE VENTURES, LLC, et al

22CV46059

**PLAINTIFF'S MOTION FOR COMPLAINT FOR
CONVERSION, UNJUST ENRICHMENT AND
MISAPPROPRIATION OF FUNDS [sic] AND MOTION FOR
ORDER TO SHOW CAUSE FOR INDIRECT CONTEMPT OF
COURT**

This is a contract dispute involving a proposed transaction for the sale of a mobile home park in Mokelumne Hill.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds that plaintiff ultimately included the statement in the Reply Brief filed on May 7, 2024. Although not placed in any of the notices filed, the court will consider the inclusion as sufficient compliance in the hopes that its ruling on these